Sanket Roy vs State Of Nct Of Delhi on 25 September, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3733/2025, CRL.M.A. 29184/2025,
CRL.M.A. 29185/2025, CRL.M.A. 29186/2025,
CRL.M.A. 29187/2025

SANKET ROY
Through: Mr. Ma
Adv. a
Gaurav
Avana
Sharma

versus

STATE OF NCT OF DELHI
Through: Mr. Su
APP fo
SI Bha
Cyber

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 25.09.2025

1. The present application is filed seeking pre-arrest bail in FIR No.04/2025 dated 06.07.2025, registered at Cyber Police Station Shahdara, for the offences under Sections 308/318(4)/319/340 of the Bharatiya Nyaya Sanhita, 2023.

2. It is alleged that the complainant had been duped into investing in an online share market scam and was defrauded for a sum of 24,70,000/-. It is the case of the prosecution that investigation into the beneficiary banks where the alleged cheated money had been transferred led to the applicant. It was found that a sum of 3,00,000/- was credited into the applicant's account from the beneficiary accounts.

3. The learned Senior Counsel for the applicant submits that This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 25/09/2025 at 23:12:11 the applicant has no connection with the fraud that was committed on the complainant.

4. He submits that the applicant had received certain amounts during the course of the transactions from a Betting App.

5. He submits that the amounts were transferred pursuant to the said transaction and the applicant can explain the same to the Investigating Officer.

6. He submits that even otherwise, only a sum of 3,00,000/- had been credited into the bank account of the applicant out of the total cheated amount of 24,70,000/-.

7. He submits that if an opportunity is given to the applicant, all the details would be provided to the Investigating Officer in regard to the amounts received into the applicant's account, which would clearly show that the applicant has played no part in the alleged offence.

8. Issue notice.

9. The learned Additional Public Prosecutor for the State accepts notice.

10. The State is directed not to arrest the applicant till the next date of hearing on him joining and cooperating in the investigation.

11. List on 31.10.2025.

AMIT MAHAJAN, J SEPTEMBER 25, 2025 "SK"

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